

**IN THE COUNTY COURT IN AND FOR PASCO COUNTY, FLORIDA
CIVIL DIVISION 6-B**

SWEET LIVING, INC.,

Plaintiff,

vs.

CASE NO.: 2026CC001256CCAXES

BRANDI RODGERS,

Defendant.

DocuSigned by:



5A3BD4011DA14F8...

**DEFENDANT'S VERIFIED MOTION TO CONTINUE FINAL HEARING OF JUNE 2,
2026**

COMES NOW Defendant, BRANDI RODGERS, appearing pro se, and pursuant to Florida Rule of Civil Procedure 1.460 respectfully moves this Honorable Court to continue the Final Hearing currently scheduled for June 2, 2026, and as grounds therefor states:

I. PROCEDURAL POSTURE

1. This action was filed by Plaintiff as a Chapter 723 eviction proceeding under Florida's summary procedure (Fla. Stat. §§ 51.011, 723.061).
2. A non-evidentiary or partly evidentiary Zoom hearing was held on March 20, 2026, at which Defendant's eye-witness to the underlying December 5–6, 2025 transaction was sworn in and gave testimony.
3. A hearing scheduled for April 2, 2026 was cancelled the night before by email from Plaintiff's counsel and subsequently rescheduled; Defendant appeared at the courthouse on April 2 in good faith and brought his sworn witness.
4. After successive amendments, the Final Hearing is now set for June 2, 2026, in person, before this Court.

II. GROUNDS FOR CONTINUANCE — FLA. R. CIV. P. 1.460

Fla. R. Civ. P. 1.460 provides that a motion to continue trial must be granted only for good cause. Good cause expressly includes "the unavailability of a party, counsel of record, or material witness." The Rule directs that the motion specify (1) the basis of the need, including when known; (2) whether the motion is opposed; (3) the actions and specific dates that will enable the movant to be ready by the proposed date; and (4) the proposed date by which the case will be ready for trial and whether agreed.

A. Material-Witness Unavailability.

5. Defendant's sole percipient eye-witness to the December 5–6, 2025 sale (the "Witness") was sworn in and testified at the March 20, 2026 hearing in this case.
6. The Witness has since relocated and is now living and working in another state. He is unable to appear in person on June 2, 2026.

7. The Witness's testimony is material because he personally observed: (a) the seller's representation that she had authority from the park's property management company to sell the Mobile Home; (b) the seller's representation that Defendant's application for tenancy would be submitted to one Jack Bergert for approval; (c) the seller's display, on her own bank account, of the December 2025 lot-rent payment; (d) the seller filling out the certificate of title and directing Defendant where to sign; (e) the contents of the title that Defendant signed; and (f) Defendant's contemporaneous statements regarding the sale.
8. Defendant first learned of the Witness's relocation and unavailability on [DATE — FILL IN], which is when the basis for this Motion arose. Defendant has acted with diligence to bring this issue to the Court's attention.

B. Procedural Defect — Jury-Trial Demand.

9. Defendant timely filed a responsive document within the 5-day summary-procedure window of Fla. Stat. § 51.011, which included a checked box demanding a JURY TRIAL pursuant to Fla. R. Civ. P. 1.430.
10. That jury-trial demand was not addressed at the March 20, 2026 Zoom hearing.
11. Defendant has filed a separate Motion to Confirm Demand for Jury Trial (or, in the alternative, for leave to demand jury trial out of time). Resolution of that motion is a threshold matter that must be addressed before the merits, and additional time is necessary to permit briefing and ruling.

C. Threshold Motion to Dismiss Pending.

12. Defendant has filed a Motion to Dismiss for Failure to State a Cause of Action and Lack of Standing, raising threshold legal issues under Fla. Stat. §§ 319.22(2), 723.059, and 723.061(1)(e). Resolution of those threshold issues should precede any merits hearing. Reasonable time to brief and rule is good cause for continuance.

D. Affirmative Claims Need to Be Joined.

13. Defendant has prepared a Counterclaim or, in the alternative, a separate civil action against the non-party seller of the Mobile Home for fraud, FDUTPA, and rescission and refund of \$18,000. Reasonable time is required to perfect those filings and, if appropriate, to consolidate them with this case in the interest of judicial economy.

III. COMPLIANCE WITH RULE 1.460 SPECIFICITY REQUIREMENTS

Pursuant to Fla. R. Civ. P. 1.460:

14. BASIS AND WHEN KNOWN: The bases of the need for continuance are stated in Parts II.A–D above. The witness-unavailability basis became known to Defendant on [DATE — FILL IN].
15. OPPOSITION: Defendant attempted to confer with Plaintiff's counsel, Keith Wynn, Esq., regarding the relief sought herein on [DATE — FILL IN]. Plaintiff's counsel [opposes / does not oppose / has not responded — STRIKE AS APPLICABLE].
16. ACTIONS AND DATES TO BE READY: Defendant proposes the following readiness plan: (a) finalize, file, and serve the Motion to Dismiss within 7 days; (b) finalize, file, and serve the Counterclaim or separate action against the seller within 14 days; (c) obtain

a sworn affidavit (or remote testimony via Fla. R. Gen. P. & Jud. Admin. 2.530) from the Witness within 30 days; (d) be prepared to set the case for jury trial after threshold motions are ruled upon.

17. PROPOSED DATE: Defendant proposes a continued Final Hearing on or after [PROPOSED DATE — at least 60 days out]. Agreed or not: [STRIKE AS APPLICABLE].

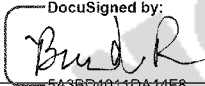
IV. PRAYER FOR RELIEF

WHEREFORE, Defendant respectfully requests that this Honorable Court:

18. CONTINUE the Final Hearing currently set for June 2, 2026;
19. RESET the Final Hearing to a date on or after [PROPOSED DATE], subject to the Court's calendar;
20. In the alternative, AUTHORIZE the Witness to appear at the Final Hearing remotely by Zoom or other audio-visual means pursuant to Fla. R. Gen. Prac. & Jud. Admin. 2.530; and
21. GRANT such further relief as the Court deems just and proper.

VERIFICATION

Under penalty of perjury, I declare that I have read the foregoing Motion and that the facts stated therein are true and correct to the best of my knowledge and belief.

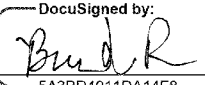
DocuSigned by:

5A3BD4011DA14F8...

BRANDI RODGERS, Defendant pro se

Dated: 5/21/2026, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on 5/21/2026, 2026, a true and correct copy of the foregoing was furnished by ☐ U.S. Mail, ☒ email, ☐ hand delivery to: Keith Wynn, Esq., counsel for Plaintiff, at the address and email of record with the Pasco County Clerk of Court.

DocuSigned by:

5A3BD4011DA14F8...

BRANDI RODGERS, Defendant pro se

13721 94th Avenue

Seminole, FL 33776

Telephone: 727-621-6090

Email: Brandisreallife@gmail.com